

HOUSE No. 5504

The Commonwealth of Massachusetts

PRESENTED BY:

Joan Meschino and Patrick M. O'Connor

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the town of Hingham to grant to the Commonwealth of Massachusetts certain parcels of land in the town of Hingham for highway purposes.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Joan Meschino</i>	<i>3rd Plymouth</i>	<i>6/5/2026</i>

HOUSE No. 5504

By Representative Meschino of Hull and Senator O'Connor, a joint petition (subject to Joint Rule 12) of Joan Meschino (by vote of the town) that the town of Hingham be authorized to grant certain parcels of land in said town to the Commonwealth for highway purposes. Transportation. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the town of Hingham to grant to the Commonwealth of Massachusetts certain parcels of land in the town of Hingham for highway purposes.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding any general or special law to the contrary, the town of
2 Hingham, Massachusetts may transfer to the Massachusetts department of transportation for
3 highway purposes certain parcels of land under the care, custody and control of the town of
4 Hingham select board, and located in the town of Hingham, identified on a plan of land entitled,
5 “Massachusetts Department of Transportation Highway Division Plan and Profile of Route 3A /
6 Summer Street / Rockland Street in the Town of Hingham Plymouth County Preliminary Right
7 of Way Plans”, which plan is on file with the Massachusetts department of transportation.

8 SECTION 2. (a) As consideration for the transfers authorized by Section 1 herein, the
9 town of Hingham shall transfer to its conservation commission subject to the provisions of
10 Article 97 of the Articles of Amendment to the Constitution of the Commonwealth and M.G.L.
11 c. 3, § 5A, the care, custody and control of an approximately 8 acre portion of the approximately

12 10.78 acre parcel of land shown as Assessor's Map 106, Lot 3 and known as 0 Hobart Street,
13 located in the town of Hingham, as shown on a plan on file with town of Hingham town clerk,
14 which land is currently under the care, custody and control of the town of Hingham select board
15 for general municipal purposes.

16 (b) As additional consideration for the transfers authorized by Section 1 herein, and in
17 addition to the land dedicated in Section 2(a) above, the Massachusetts department of
18 transportation shall compensate the town of Hingham in an amount not less than 110 percent of
19 the fair market value or value in use of the transferred lands, whichever is greater, as determined
20 by a professional appraisal. Any funds transferred under this section shall be deposited in a fund
21 dedicated to conservation of land in the town of Hingham.

22 SECTION 3. The Massachusetts department of transportation shall assume all costs
23 associated with engineering, surveys, appraisal, deed preparation and other expenses necessary to
24 execute the conveyances authorized by this act.

25 SECTION 4. This act shall take effect upon its passage.